



BNSS Notes VBS

BNS Syllabus (Karnataka State Law University)



Scan to open on Studocu

CRIMINAL LAW II

BHARATIYA NAGARIK SURAKSHA SANHITA, 2023

JUVENILE JUSTICE (CARE AND PROTECTION OF CHILDREN) ACT, 2015

& THE PROBATION OF OFFENDERS ACT, 1958

OBJECTIVES:

Transition from Code of Criminal Procedure to Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS 2023) is the result of shifted attention from penalty to nyaya. The primary objective of this course is to familiarize the students with the basic procedure relating to investigation and trial of offences along with the procedure of rendering judgments. The students are also expected to appreciate role of technology in different criminal provisions and the importance of time bound remedies.

Unit I: Introduction

Meaning and importance of criminal procedure; Background and salient features of Bharatiya Nagarik Suraksha Sanhita including its Constitutional dimensions; Definitions and classification of offences- Bail, Bail bond, Bond, Audio-Video Electronic Means, Victim, Investigation; Replaced provisions relating to Organisation, Functions, Duties and Powers of Courts, prosecution and Police under BNSS.

Initiation of criminal case- First Information Report, Zero FIR, Investigation powers, Preliminary Inquiry, Complaint; Arrest-Concept, procedure and safeguards, Proclamation, Information regarding arrested persons, Handcuffing.

Unit II: Pre -Trial Process and Commencement of Proceedings

1. Magisterial power to take cognizance and timelines to complete the proceedings;
2. Dismissal of complaints;
3. Commencement of proceedings;
4. Framing of Charge and joinder of charges;
5. Process to compel appearance and production of things- Use of electronic means, securing presence of successor;
6. Preliminary pleas under the Sanhita- Plea of guilt, limitation for taking

cognizance of offences;

7. Provisions as to Bail and Bonds.

Unit III – Trial Process

1. Trial before Court of Sessions;
2. Trial of Warrant and Summons cases by Magistrates;
3. Summary Trials – Significance;
4. Evidence and General Provisions as to inquiries and trials;
5. Compounding of offences and Plea bargaining;
6. Concurrent and consecutive running of Sentences;
7. Appeals, Revision and Reference;
8. Security for keeping peace and good behavior;
9. Maintenance – Alteration and Enforcement.

Unit IV: Miscellaneous Procedure

1. Judgment;
2. Transfer of cases;
3. Execution, suspension, remission and commutation of Sentences and Mercy petitions;
4. Disposal of property- photography, videography and time bound release;
5. Preventive action of PSolice;
6. Irregular proceedings;
7. Protection of Victims- Compensation and Treatment.

Unit V: Juvenile Justice and Probation of Offenders

1. *The Juvenile Justice (Care and Protection of Children) Act, 2015*-Salient features, the Juvenile Justice Board –Composition, Powers and Functions; Procedure relating to Children in conflict with Law, Children in need of Care and Protection and their rehabilitation, Child Welfare Committee.
2. *The Probation of Offenders Act, 1958*-Salient features, Power of Court to release

certain offenders on probation/ good conduct; Power of Courts to require released offenders to pay compensation and cost; Appeal and Revision.

Prescribed Books:

1. Ratanlal and Dhirajlal's, Bharatiya Nagarik Suraksha Sanhita, Lexis Nexis, (the latest edition comprising the BNSS, 2023)
2. K.N. Chandrashekar Pillai (Revd.), R V Kelkar's Criminal Procedure (Recent Edition), Eastern Book Publication.

Reference Books

1. Bare Act – *Bharatiya Nagarik Suraksha Sanhita, 2023*.
2. K.N. Chandrashekar Pillai (Revd.), R V Kelkar's Lectures on Criminal Procedure (Recent Edition), Eastern Book Publication.
3. Bare Acts - *The Juvenile Justice (Care and Protection) Act, 2015 & The Probation of Offenders Act, 1958*.
4. M.P. Tandon, Criminal Procedure Code, Central Law Agency (latest edition)
5. S C Sarkar, PC Sarkar and Sudipto Sarkar, Sarkar: The Code of Criminal Procedure (Recent Edition), LexisNexis.
6. Ratanlal and Dhirajlal's, The Code of Criminal Procedure, 1973, Lexis Nexis, (Recent Edition).
7. J.K.Verma, Bharatiya Nagarik Suraksha Sanhita, 2023 (Criminal Procedure): A Commentary, Eastern Book Publication.

Important Note

- The teachers and students have to refer the provisions as amended upto date referring the latest editions of books on the subject.

The **Bharatiya Nagarika Suraksha Sanhita (BNSS)**, 2023, was introduced as a modernized and reformed version of the Indian Criminal Procedure Code (CrPC), 1973. It is part of a series of reforms aimed at updating India's criminal justice system. Alongside the BNSS, two other key bills were introduced: the **Bharatiya Nyaya Sanhita Bill, 2023** (replacing the Indian Penal Code, IPC, 1860) and the **Bharatiya Sakshya Bill, 2023** (replacing the Indian Evidence Act, 1872).

The **Bharatiya Nagarika Suraksha Sanhita** is focused on criminal procedure and encompasses key changes to the existing laws governing the criminal justice process in India.

UNIT I

MEANING AND IMPORTANCE OF CRIMINAL PROCEDURE IN BNSS

Meaning of Criminal Procedure in the Bharatiya Nagarika Suraksha Sanhita (BNSS)

Criminal procedure refers to the legal framework that governs the processes involved in the investigation, prosecution, trial, and punishment of criminal offenses. It outlines the rights and obligations of the state (police, prosecution, and judiciary) as well as individuals (accused, victims, and witnesses) in criminal cases. In the **BNSS 2023**, criminal procedure has been modernized and made more efficient, building upon the foundation of the **Criminal Procedure Code (CrPC) of 1973**.

The BNSS lays out the steps to be followed from the **registration of an offense (FIR)**, through **arrest, investigation, bail, trial, and sentencing**, ensuring the proper administration of justice. It also specifies the safeguards for the accused, the protection of victims, and the use of technology to enhance the speed and transparency of the legal process.

Importance of Criminal Procedure in BNSS

The **importance of criminal procedure** in the BNSS can be understood through the following key points:

1. Ensures Due Process and Fairness

- **Meaning:** Criminal procedure ensures that **due process** is followed in every stage of a criminal case, from the filing of an FIR to the final verdict. The BNSS, like the CrPC, emphasizes fairness in legal proceedings, preventing arbitrary actions by law enforcement.
- **Importance:** By laying down clear rules for investigation and trial, the BNSS ensures that the fundamental rights of both victims and the accused are protected. This promotes **justice, fairness, and accountability** in the criminal justice system.

2. Protects Constitutional Rights

- **Meaning:** Criminal procedure under BNSS guarantees that individuals' **constitutional rights**—such as the right to **life and personal liberty (Article 21)**, **equality before the law (Article 14)**, and **protection against arbitrary detention (Article 22)**—are upheld during the criminal process.
- **Importance:** This protection prevents **unlawful arrests, detentions, or convictions**, ensuring that all actions by the state are within the ambit of law. Criminal procedure serves as a safeguard for citizens against misuse of state power.

3. Ensures Timely Justice

- **Meaning:** BNSS introduces **time-bound investigations and trials** to address delays that have plagued the criminal justice system under the CrPC. It mandates that investigations be completed within **90 days for less serious offenses** and **180 days for serious offenses**.
- **Importance:** This promotes **speedy justice**, which is a constitutional right under Article 21. Delays in the judicial process can result in prolonged detention of the accused or denial of justice to the victim, and BNSS aims to minimize these inefficiencies.

4. Balances Rights of Victims and Accused

- **Meaning:** Criminal procedure in BNSS carefully balances the rights of the **accused** (such as the right to a fair trial and protection against self-incrimination) with the rights of **victims** (such as the right to be informed of proceedings and to receive compensation).
- **Importance:** This balance is crucial to ensure that **justice is not just punitive** but also restorative. The BNSS strengthens victim rights by providing **compensation schemes** and enhances fairness in trials for the accused by streamlining **bail provisions** and reducing unnecessary detentions.

5. Introduces Modernization and Use of Technology

- **Meaning:** BNSS integrates **technology** into the criminal justice process, allowing for **e-FIRs, digital evidence collection, video conferencing for trials**, and the use of **e-courts** to ensure transparency and efficiency.
- **Importance:** The modernization of criminal procedure makes justice more **accessible and transparent**, especially in remote areas. It reduces the burden on courts and law enforcement while enhancing **public confidence** in the judicial system.

6. Ensures Accountability of Law Enforcement

- **Meaning:** Criminal procedure in BNSS includes stringent rules to ensure **accountability** for law enforcement agencies. The BNSS mandates that police justify arrests, particularly for minor offenses, and face penalties for misconduct, wrongful detention, or failure to follow legal procedures.
- **Importance:** This **increases accountability and transparency** in the system, protecting individuals from misuse of power by authorities. It reduces instances of **custodial violence** and arbitrary actions by law enforcement, upholding the **rule of law**.

7. Supports Restorative Justice and Community Service

- **Meaning:** BNSS introduces **community service** as an alternative to imprisonment for minor offenses, emphasizing a **restorative justice** approach rather than just punitive measures.
- **Importance:** This is crucial for **rehabilitating offenders**, reducing the prison population for minor offenses, and reintegrating offenders into society. It aligns with the idea that **justice should focus on reforming individuals** rather than simply punishing them.

8. Addresses Victim Rights and Compensation

- **Meaning:** The BNSS strengthens the focus on **victim rights**, including provisions for **victim compensation**, even in cases where the accused is acquitted due to lack of evidence. Victims are entitled to be involved in the proceedings and are kept informed about the status of the case.
- **Importance:** The focus on **victim-centric justice** is important for promoting trust in the criminal justice system. It ensures that victims are not marginalized in the process, and receive timely compensation for the harms they suffer.

9. Prevents Abuse of Legal Procedures

- **Meaning:** The criminal procedure in BNSS includes measures to prevent **abuse of the legal process**, such as unnecessary arrests, lengthy detentions, and false accusations. Safeguards are built into the system to protect individuals from being wrongfully accused or punished.
- **Importance:** By preventing the misuse of criminal procedures, BNSS protects individuals' rights and ensures that **law enforcement acts within legal boundaries**. This enhances the credibility of the criminal justice system.

10. Supports Gender and Child Protection

- **Meaning:** BNSS places special emphasis on crimes against **women and children**, including fast-track courts for sexual offenses, domestic violence, and child abuse. It ensures swift and sensitive handling of these cases.
- **Importance:** This is critical for **protecting vulnerable sections of society**, upholding their dignity, and ensuring that justice is delivered swiftly in such cases. It supports constitutional provisions like **Article 15** (prohibition of discrimination) and **Article 39(e)** (protection of children and youth).

Conclusion: Importance of Criminal Procedure in BNSS

Criminal procedure in the **Bharatiya Nagarika Suraksha Sanhita** plays a pivotal role in ensuring **justice is delivered efficiently, fairly, and transparently**. It modernizes the legal process, enhances the protection of constitutional rights, and balances the needs of both victims and the accused. The BNSS marks a major reform in India's criminal justice system by streamlining procedures, using technology, and prioritizing the timely resolution of cases, thereby addressing the longstanding issues of delay and inefficiency in the criminal justice system.

This framework is central to maintaining **law and order**, protecting individual rights, and ensuring that the **rule of law** is upheld in every criminal case, reflecting the evolving needs of society and the justice system.

SALIENT FEATURES OF BNSS INCLUDING ITS CONSTITUTIONAL DIMENSIONS:

The **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023** is a comprehensive legislation that modernizes and reforms the criminal procedure law in India, replacing the **Criminal Procedure Code (CrPC) of 1973**. It aims to enhance efficiency, transparency, and fairness in the criminal justice system while addressing longstanding issues such as delays, outdated procedures, and the protection of rights for victims and the accused.

Here are the **salient features of BNSS 2023** including its **constitutional dimensions**:

1. Time-Bound Investigations and Trials

- **Provision:** The BNSS mandates time-bound completion of investigations and trials, which is a significant step towards addressing delays in the criminal justice system. For example, investigations must be completed within **90 days** for offenses punishable by up to 7 years of imprisonment, and within **180 days** for serious offenses.
- **Constitutional Dimension:** Article 21 of the Constitution guarantees the **right to a speedy trial**, which has been upheld by the Supreme Court in several cases (e.g., **Hussainara Khatoon v. State of Bihar**). The BNSS aligns with this constitutional mandate by setting specific deadlines to avoid prolonged detentions and ensure timely justice.

2. FIR Filing and Digital Reforms

- **Provision:** The BNSS introduces the concept of **digital FIRs** for non-serious offenses, allowing individuals to register FIRs online without the need to visit a police station. This modernization aims to increase accessibility to justice and reduce corruption.
- **Constitutional Dimension:** This aligns with Article 14 of the Constitution, which guarantees **equality before the law**. By providing digital access to the criminal justice system, the BNSS ensures that all citizens, regardless of their geographical or socio-economic status, can seek justice without discrimination.

3. Bail Reforms

- **Provision:** BNSS simplifies the process of obtaining bail for minor offenses and strengthens provisions for **anticipatory bail** and **default bail**. It ensures that individuals accused of petty offenses are not unnecessarily detained, reducing the burden on the judicial system.
- **Constitutional Dimension:** Article 21 guarantees the **right to life and personal liberty**, which includes protection from unlawful detention. Bail reforms under BNSS strengthen the individual's right to freedom and ensure that detentions are not arbitrary or excessively prolonged.

4. Zero FIR and Jurisdiction

- **Provision:** The BNSS retains and formalizes the concept of **Zero FIR**, allowing citizens to file an FIR at any police station, irrespective of the place of the offense. This is particularly important in cases of urgency or when the victim is unable to reach the appropriate police station.
- **Constitutional Dimension:** This provision aligns with the constitutional right to **access justice** (Article 21) by ensuring that victims can file complaints quickly without being hindered by jurisdictional limitations, which can delay justice in critical situations.

5. Victim Rights and Compensation

- **Provision:** The BNSS strengthens the rights of victims by providing for **victim compensation** even in cases where the accused is acquitted due to lack of evidence. Victims are also given the right to participate more actively in the legal process and are entitled to be kept informed about case proceedings.
- **Constitutional Dimension:** This provision is linked to Article 21 (the right to life), ensuring that victims of crime are provided justice through **compensation**, addressing the harm caused, even if a conviction is not secured. It also supports **Article 14's** guarantee of **equal protection of the law** by making sure that victims are not ignored in the criminal justice process.

6. Community Service as a Form of Punishment

- **Provision:** BNSS introduces **community service** as an alternative punishment for minor offenses. Instead of imprisonment, offenders may be required to engage in community work, which serves as both a reformative and rehabilitative measure.
- **Constitutional Dimension:** This reflects a **reformative approach to justice**, consistent with the **right to dignity** under Article 21, focusing on rehabilitation rather than punitive incarceration, which can often lead to further alienation of the offender from society.

7. Witness Protection and Rights

- **Provision:** BNSS strengthens provisions for the protection of witnesses, ensuring that they are not harassed or threatened during investigations and trials. Special protections are provided in cases involving heinous crimes.
- **Constitutional Dimension:** Protecting witnesses upholds the **right to a fair trial** under Article 21. The **Supreme Court** has recognized the need for witness protection as a critical component of ensuring justice, particularly in cases where the accused has considerable influence or power.

8. Use of Technology in Investigations and Trials

- **Provision:** BNSS encourages the use of **e-courts**, **video conferencing**, and **digital evidence collection** in both investigations and trials. This modernization aims to reduce delays and enhance the transparency of legal proceedings.

- **Constitutional Dimension:** This provision supports **Article 39A**, which directs the state to ensure that the operation of the legal system promotes justice on the basis of equal opportunity. By using technology, BNSS enhances accessibility to justice, particularly for citizens in remote areas or those who cannot attend court in person.

9. Fast-Track Courts for Gender-Based and Child-Related Crimes

- **Provision:** BNSS emphasizes fast-tracking trials for crimes against **women and children**, including sexual offenses, domestic violence, and child abuse. It aims to ensure quicker justice delivery in such sensitive cases.
- **Constitutional Dimension:** Fast-track courts for gender-based crimes uphold **Article 15**, which prohibits discrimination on the grounds of sex, and **Article 21**, ensuring protection of women's and children's rights to dignity and justice. It also resonates with **Article 51A(e)**, which enjoins citizens to renounce practices derogatory to the dignity of women.

10. Stringent Penalties for Heinous Crimes

- **Provision:** The BNSS imposes more stringent penalties for heinous crimes such as **terrorism, rape, organized crime**, and offenses against women and children. These provisions aim to deter severe criminal activities and protect society from threats to public order.
- **Constitutional Dimension:** By enforcing stricter penalties for grave offenses, the BNSS seeks to balance the state's duty to maintain **public order (Article 19(2))** and the **right to personal security (Article 21)** of its citizens. This reinforces the constitutional responsibility of the state to protect individuals from violence and lawlessness.

11. Greater Accountability for Law Enforcement

- **Provision:** BNSS introduces mechanisms for increasing the accountability of police and investigative authorities. There are provisions for scrutinizing arbitrary arrests, wrongful detention, and custodial torture, with penalties for violations of procedural safeguards.
- **Constitutional Dimension:** This is in line with **Article 22**, which provides safeguards against arbitrary arrest and detention. The **Supreme Court** has reiterated the need for procedural fairness in criminal investigations, and the BNSS builds on this constitutional protection by holding law enforcement accountable for rights violations.

12. Right to Legal Aid and Counsel

- **Provision:** BNSS reiterates the right of accused persons to access **free legal aid** and the right to be defended by a counsel of their choice. This is crucial for ensuring that individuals, particularly those from economically weaker sections, are not denied justice due to lack of resources.
- **Constitutional Dimension:** This provision directly supports **Article 39A**, which mandates the state to provide free legal aid to ensure that justice is not denied to any

citizen by reason of economic or other disabilities. The **right to legal representation** is also part of the broader guarantee of **fair trial rights under Article 21**.

Summary of Constitutional Dimensions in BNSS

- **Article 14 (Equality before the law):** Ensured through provisions like online FIRs, equal access to justice, and transparency.
- **Article 21 (Right to life and personal liberty):** Reflected in time-bound investigations, bail reforms, protection of witnesses, victim compensation, and a focus on fair trials.
- **Article 22 (Protection against arbitrary arrest):** Strengthened through increased police accountability and procedural safeguards in arrest and detention.
- **Article 39A (Equal justice and free legal aid):** Promoted through access to legal aid and the use of technology in criminal justice proceedings.
- **Article 51A(e) (Fundamental duties regarding dignity of women):** Fast-track courts for gender-based crimes and child protection align with this.

Key Amendments and Differences from the CrPC

1. **FIR Registration:**
 - The BNSS emphasizes simplified and digital registration of FIRs, especially for non-serious offenses. This marks a shift from the more bureaucratic approach under the CrPC.
2. **Compensation to Victims:**
 - Under the CrPC, victim compensation existed but was less emphasized. The BNSS brings it to the forefront, making compensation an integral part of criminal justice delivery.
3. **Technology-Driven Justice:**
 - While the CrPC provided for some use of technology, the BNSS promotes extensive use of technology in investigations, case tracking, and trials to modernize the justice system.
4. **Focus on Timely Justice:**
 - Unlike the CrPC, the BNSS introduces stricter deadlines for various stages of criminal proceedings (like investigation timelines), aiming to reduce the delays that have plagued the system.
5. **Alternative Sentencing:**
 - The introduction of community service as a sentencing option is a new provision that the CrPC did not specifically emphasize.

Summary of Important Areas for LLB Exams (KSLU Pattern)

1. **Differences between CrPC and BNSS** – This is a key exam topic where students may be asked to explain the reforms introduced by BNSS.
2. **Procedural Aspects** – Focus on FIR registration, investigation timelines, bail procedures, and trial timelines, as these are central to procedural law.
3. **Victim and Witness Rights** – Questions may focus on how BNSS enhances protections for victims and witnesses compared to CrPC.
4. **Technology in Justice** – Expect questions on how the BNSS modernizes criminal procedure through technology.
5. **Rehabilitation and Alternative Sentencing** – Community service as a form of punishment is an important topic.
6. **Focus on Gender-Based Crimes** – Pay special attention to the reforms concerning women and children, as these are frequently tested areas.

CLASSIFICATIONS OF OFFENCES UNDER BNSS

The **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023** is a major legislative reform that updates and replaces the **Criminal Procedure Code (CrPC) of 1973**, while continuing to define and classify offenses in a structured manner. The **definitions and classifications of offenses** in BNSS are crucial to understanding how various crimes are handled in the Indian criminal justice system, as they determine the procedures for investigation, prosecution, trial, and punishment.

Definitions of Offenses under BNSS

An **offense** under BNSS refers to any act or omission made punishable by law. The BNSS classifies offenses into various categories based on the nature and seriousness of the crime, and the consequences for the accused and society. These offenses can be broadly categorized based on **severity, cognizability, bailability, and the mode of trial**.

Classifications of Offenses under BNSS

The classification of offenses in the BNSS is based on several legal distinctions. The major categories are:

1. Cognizable and Non-Cognizable Offenses

- **Cognizable Offenses:**
 - **Definition:** These are serious offenses where the police have the authority to arrest an accused without a warrant and can start an investigation without the permission of a magistrate.
 - **Examples:** Murder, rape, robbery, kidnapping, and other serious crimes.
 - **Importance in BNSS:** Under the BNSS, cognizable offenses are given priority in terms of investigation and trial due to their grave nature and the immediate threat they pose to public safety.
- **Non-Cognizable Offenses:**

- **Definition:** These are less serious offenses where the police cannot arrest without a warrant, and an investigation can only be initiated with the permission of a magistrate.
- **Examples:** Defamation, public nuisance, and minor assaults.
- **Importance in BNSS:** The BNSS requires victims of non-cognizable offenses to approach the court for redress, ensuring that law enforcement focuses on more serious crimes.

2. Bailable and Non-Bailable Offenses

- **Bailable Offenses:**
 - **Definition:** In these cases, the accused has the right to be released on bail, either by the police or the court, upon fulfilling the necessary conditions.
 - **Examples:** Offenses like minor theft, simple assault, or public nuisance.
 - **Importance in BNSS:** BNSS makes provisions for automatic bail for minor offenses, ensuring that individuals are not unnecessarily incarcerated for petty crimes.
- **Non-Bailable Offenses:**
 - **Definition:** These offenses are more serious in nature, and bail is not granted as a matter of right. The court has the discretion to grant or deny bail after considering various factors like the seriousness of the offense, the likelihood of the accused fleeing, and the danger posed to society.
 - **Examples:** Murder, rape, kidnapping, terrorism, and other serious crimes.
 - **Importance in BNSS:** Non-bailable offenses are treated with strict procedures under BNSS, focusing on public safety and ensuring that only deserving cases are granted bail.

3. Compoundable and Non-Compoundable Offenses

- **Compoundable Offenses:**
 - **Definition:** These are offenses where the complainant or victim can reach a compromise with the accused, and the case can be withdrawn with the permission of the court.
 - **Examples:** Cases of simple hurt, minor assault, defamation, or breach of trust.
 - **Importance in BNSS:** BNSS allows for a restorative approach in cases of compoundable offenses, where reconciliation between parties is possible without the need for a prolonged trial.
- **Non-Compoundable Offenses:**
 - **Definition:** In these offenses, the victim or complainant cannot withdraw the complaint, and the case must be prosecuted by the state. These are generally more serious offenses that affect society at large.
 - **Examples:** Murder, rape, robbery, or terrorism.
 - **Importance in BNSS:** BNSS ensures that non-compoundable offenses are prosecuted with full rigor, as they involve greater harm to public order and safety.

4. Offenses Against the State and Public Tranquility

- **Definition:** These offenses threaten the security and sovereignty of the state or disturb public peace and order.

- **Examples:**
 - **Treason, waging war against the state:** Acts that undermine the authority of the government or threaten national security.
 - **Unlawful assembly, rioting, sedition:** Acts that disrupt public peace or incite violence against the government.
- **Importance in BNSS:** The BNSS places a high emphasis on protecting the integrity of the state and maintaining public order. Offenses in this category are treated with the utmost severity.

5. Offenses Affecting Human Body and Property

- **Offenses Against the Human Body:**
 - **Definition:** These offenses involve physical harm or threat to individuals.
 - **Examples:** Murder, homicide, kidnapping, rape, assault, and grievous hurt.
 - **Importance in BNSS:** Offenses against the human body are treated as serious crimes under BNSS, with stringent penalties and fast-tracked trials, especially for offenses like rape and crimes against women and children.
- **Offenses Against Property:**
 - **Definition:** These involve illegal interference with someone's property or possessions.
 - **Examples:** Theft, robbery, burglary, extortion, misappropriation, and criminal trespass.
 - **Importance in BNSS:** The BNSS ensures quick action and recovery in cases involving property offenses, providing remedies like compensation to victims.

6. Economic Offenses and White-Collar Crimes

- **Definition:** These are crimes that involve illegal financial transactions or deceit for economic gain, often committed by individuals in positions of trust or authority.
- **Examples:** Fraud, embezzlement, money laundering, tax evasion, and cybercrimes.
- **Importance in BNSS:** BNSS provides for stringent measures and specialized agencies to investigate and prosecute economic offenses, recognizing their impact on national and economic stability.

7. Offenses Against Women and Children

- **Definition:** These offenses involve physical, emotional, or sexual harm to women and children, who are considered vulnerable sections of society.
- **Examples:** Rape, dowry harassment, child abuse, domestic violence, trafficking, and sexual harassment.
- **Importance in BNSS:** The BNSS prioritizes the protection of women and children, ensuring fast-track trials and stringent punishments for offenders. It aligns with constitutional principles of protecting the dignity and safety of women and children.

8. Special and Local Laws

- **Definition:** In addition to the general offenses under BNSS, there are special offenses defined under **special laws** (such as anti-terrorism laws, anti-corruption laws) and **local laws** that may vary by region or community.

- **Examples:** Offenses under the **Prevention of Corruption Act, Narcotic Drugs and Psychotropic Substances Act, Arms Act**, etc.
- **Importance in BNSS:** BNSS integrates provisions for handling offenses under these special and local laws, ensuring coordination between general criminal law and these specific statutes.

Summary of Classification of Offenses under BNSS

Classification	Definition	Examples
Cognizable Offenses	Police can arrest without a warrant	Murder, Rape, Robbery
Non-Cognizable Offenses	Police require a warrant for arrest	Defamation, Public Nuisance
Bailable Offenses	Right to bail exists	Minor Theft, Public Nuisance
Non-Bailable Offenses	No right to bail; court discretion	Murder, Terrorism, Rape
Compoundable Offenses	Offenses that can be compromised with victim's consent	Simple Hurt, Defamation
Non-Compoundable Offenses	No compromise allowed, must be prosecuted	Murder, Rape, Terrorism
Offenses Against the State	Threaten national security or public order	Sedition, Treason, Waging War Against the State
Offenses Against Human Body	Harm to individuals' physical integrity	Murder, Assault, Rape
Offenses Against Property	Unlawful interference with property	Theft, Burglary, Extortion
Economic Offenses	Financial crimes or white-collar crimes	Fraud, Money Laundering, Tax Evasion
Offenses Against Women/Children	Harm to women and children	Rape, Domestic Violence, Child Abuse

Conclusion

The **BNSS 2023** maintains a clear and comprehensive classification of offenses, ensuring that crimes are categorized based on their severity, impact, and legal procedures required for their prosecution. These classifications help law enforcement, prosecutors, and the judiciary in determining the appropriate **investigation methods, punishments, and remedies** for each offense, while ensuring that justice is served efficiently and fairly.

EXPLAIN BAIL AND BAIL BOND UNDER BNSS

Bail and Bail Bond under Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023

Bail and bail bonds are legal mechanisms under the criminal procedure that allow an accused person to be temporarily released from custody, typically pending the trial, under certain conditions. The purpose of bail is to ensure that the accused appears in court for hearings and the trial, while also balancing the presumption of innocence until proven guilty.

The **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023**, which updates the earlier **Criminal Procedure Code (CrPC)**, includes modernized provisions regarding bail, streamlining the process and ensuring that it is more transparent and accessible.

1. Meaning of Bail under BNSS

Bail refers to the temporary release of an accused person from custody, on the condition that they will appear before the court at future dates for hearings and the trial. The primary aim of bail is to prevent unnecessary detention of individuals accused of a crime, unless there is a significant reason to believe that they may flee, tamper with evidence, or commit further crimes.

- **Granting of Bail:** Bail is granted based on several factors, including the **nature and seriousness of the offense**, the likelihood of the accused appearing at trial, and the possibility of the accused committing further crimes.
- **Right to Bail:** In certain cases, such as **bailable offenses**, the accused has a **right to bail**. For **non-bailable offenses**, bail may be granted at the discretion of the court.

2. Classification of Bail under BNSS

The BNSS, like the CrPC, classifies offenses into **bailable** and **non-bailable** categories, and the bail procedures vary accordingly.

a. Bailable Offenses

- **Definition:** In bailable offenses, bail is a matter of right, and the accused has the right to be released on bail either by the police officer or by the court.
- **Process:** In cases of **bailable offenses**, when the accused is arrested, they can apply for bail. The police officer or court is obliged to release the accused upon furnishing the bail amount.
- **Examples:** Minor offenses such as simple assault, minor theft, or public nuisance.

Key Features of Bail in Bailable Offenses:

- The bail is typically granted by the police station itself after the arrest.
- If bail is refused by the police, the accused can approach the court to secure bail.
- Bail can be granted on **personal bond** or by furnishing a **bail bond**.

b. Non-Bailable Offenses

- **Definition:** In non-bailable offenses, bail is not a matter of right. It can only be granted by a magistrate or judge at their discretion, based on the specifics of the case.
- **Process:** For **non-bailable offenses**, the accused must approach the court for bail. The court will decide whether bail should be granted based on factors such as:
 - The seriousness of the offense.
 - The likelihood of the accused fleeing or tampering with evidence.
 - The threat posed by the accused to the public.
- **Examples:** Serious offenses like murder, rape, kidnapping, and terrorism.

Key Features of Bail in Non-Bailable Offenses:

- The accused is not automatically entitled to bail.
- Bail may be denied if the court believes that the accused might abscond or influence witnesses.
- Courts have the discretion to impose stringent conditions on the accused if bail is granted.

3. Types of Bail in BNSS

The BNSS provides for several types of bail based on the stage of the criminal process and the discretion of the court:

a. Regular Bail

- **Definition:** This is bail granted to an accused after they have been arrested. It is the most common form of bail, where the court releases the accused pending the trial.
- **When Granted:** It is granted after the accused has been arrested and applies for release before the trial.

b. Interim Bail

- **Definition:** This is temporary bail granted for a short period, typically while the court is considering a regular bail application.
- **When Granted:** It is granted when the accused applies for regular bail, but the court needs more time to make a decision. It serves as a temporary release in the interim.

c. Anticipatory Bail

- **Definition:** Anticipatory bail is a pre-arrest bail, granted when a person anticipates that they might be arrested for a non-bailable offense. The purpose is to protect the person from arrest.
- **When Granted:** It is applied for **before** the arrest and is granted by the sessions court or the High Court. This is usually used in cases where the accused fears false accusations or malicious prosecution.
- **Conditions:** The court can impose conditions on the accused to ensure they cooperate with the investigation, such as surrendering their passport or reporting to the police regularly.

4. Bail Bond under BNSS

A **bail bond** is a legal document that acts as a guarantee for the accused's appearance in court. It involves two essential elements:

a. Personal Bond

- **Definition:** A **personal bond** (also known as a "self bond") is a promise made by the accused to the court that they will appear for all required court proceedings.
- **No Surety or Payment:** In a personal bond, the accused does not have to furnish any money or sureties. Instead, they sign a bond agreeing to pay a certain amount if they fail to appear in court as required.

b. Surety Bond

- **Definition:** A **surety bond** involves a third party (usually a relative or friend) who guarantees that the accused will appear in court.
- **Role of Surety:** The **surety** is liable to pay a specified amount to the court if the accused fails to appear. This amount is agreed upon at the time of granting bail.
- **Process:** The accused or their representative must furnish the bail amount or surety bond to the court or police. If the accused violates the conditions of bail, the surety may be forfeited.

5. Conditions for Granting Bail under BNSS

Under BNSS, courts can impose specific **conditions** when granting bail to ensure that the accused complies with the judicial process. These conditions may include:

- **Restrictions on Movement:** The accused may be asked to remain within a particular jurisdiction or region.
- **Surrender of Passport:** In certain cases, the court may require the accused to surrender their passport to prevent them from fleeing the country.
- **Regular Reporting to Police:** The accused may have to report regularly to a local police station during the period they are out on bail.
- **Prohibition on Contacting Witnesses:** The accused may be barred from contacting witnesses to prevent tampering with evidence or influencing testimonies.

The court ensures that these conditions strike a balance between allowing the accused freedom and ensuring their availability for trial.

6. Cancellation of Bail

Bail granted under BNSS can be canceled if the accused violates any conditions of the bail, such as:

- Failing to appear in court as required.
- Attempting to flee the jurisdiction.
- Tampering with evidence or intimidating witnesses.
- Committing further offenses while out on bail.

If such violations occur, the court has the authority to revoke bail and order the immediate arrest of the accused.

7. Judicial Discretion in Granting Bail under BNSS

While the right to bail exists in certain bailable offenses, the **judicial discretion** in granting bail for non-bailable offenses plays a crucial role in ensuring justice. The courts consider various factors when deciding bail applications, including:

- **Nature and Gravity of the Offense:** Serious offenses, especially those involving violence or a threat to public safety, are less likely to result in bail.
- **Likelihood of Absconding:** If the court believes that the accused may flee, bail may be denied.

- **Criminal Antecedents:** Past criminal records can influence whether or not the court grants bail.
- **Risk of Witness Tampering:** The court assesses whether the accused might attempt to influence or intimidate witnesses.

The BNSS thus ensures a fair balance between the **right to personal liberty** (Article 21 of the Constitution) and the **interest of justice**.

Conclusion

Bail and bail bonds under the **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023** play a crucial role in balancing individual liberty and the requirements of justice. Bail provides a way for the accused to remain free during the trial while ensuring that they comply with the judicial process. The BNSS reforms aim to make the bail process more transparent and efficient while protecting the rights of both the accused and society.

Bond under Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023

A **bond** under the **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023** refers to a legal agreement where an individual (usually the accused or another party acting on their behalf) promises to fulfill certain conditions, particularly appearing before the court as required, in exchange for being released from custody. The bond acts as a security or guarantee to ensure that the person complies with court orders.

In the context of BNSS, **bonds** are primarily associated with the **bail** process, but they may also be required in other situations, such as when an individual is required to keep the peace, refrain from certain activities, or attend court proceedings.

Types of Bonds under BNSS

Under BNSS, bonds can be classified primarily into two categories:

1. **Personal Bond** (also called a "self bond" or "recognizance")
2. **Surety Bond**

1. Personal Bond

A **personal bond** refers to an undertaking or promise made by the accused or any other person without furnishing a surety. In this type of bond, the accused agrees to comply with certain conditions, such as appearing in court, and to pay a specified sum of money if they fail to fulfill those conditions.

Key Features of Personal Bond:

- **No Surety Required:** In a personal bond, the accused is not required to provide a third-party guarantor or surety. The individual gives their own assurance to the court.

- **Monetary Penalty:** While the individual doesn't pay any money upfront, they promise to pay a certain amount if they violate the terms of the bond (e.g., if they fail to appear in court).
- **When Granted:** Personal bonds are usually granted in less serious offenses where the accused is considered unlikely to flee or commit further offenses. Courts may also offer personal bonds to individuals with a clean record or when the accused cannot afford a surety.

Example of Use:

- In cases of **bailable offenses** or when the court believes that the accused can be trusted to appear for trial, a personal bond may be accepted.

Objective:

- To ensure that even those who cannot afford to pay money or provide a surety are given a chance to be released from custody, in line with the principle of personal liberty.

2. Surety Bond

A **surety bond** involves a third party (called a **surety**) who guarantees that the accused will comply with the conditions of bail, such as appearing before the court as required. If the accused violates the bond's conditions, the surety is held liable to pay the bond amount.

Key Features of Surety Bond:

- **Role of the Surety:** The surety is often a family member, friend, or acquaintance who promises to ensure that the accused follows the court's orders and attends all hearings.
- **Financial Liability:** The surety assumes the financial responsibility for the accused's compliance. If the accused fails to appear or violates any other condition of bail, the surety is required to pay the specified amount of money to the court.
- **Surety's Responsibility:** The surety must be financially stable and must prove to the court that they have the means to pay the bond amount if necessary.

Example of Use:

- In cases of **non-bailable offenses** or when the court deems that additional security is needed to ensure the accused's presence, a surety bond is required.

Objective:

- To create a strong financial incentive for the accused to appear in court and comply with other conditions set by the court.

Conditions of Bonds under BNSS

Whether it is a **personal bond** or a **surety bond**, the court can impose certain **conditions** that the accused must comply with as part of their release. These conditions can include:

- **Appearing for all court hearings:** The accused must attend every court hearing as required.
- **Restricting movement:** The court may restrict the accused's movement within a particular area or require them to stay within a certain jurisdiction.
- **Surrendering passport:** To prevent the accused from leaving the country, the court may order the surrender of the accused's passport.
- **Reporting to a police station:** The court may require the accused to regularly report to a designated police station until the trial is concluded.
- **Avoiding contact with witnesses:** To prevent witness tampering, the court may order the accused to avoid any contact with witnesses involved in the case.

Forfeiture of Bond

If the accused violates the conditions of the bond, such as failing to appear for court hearings or committing another offense while on bail, the bond may be **forfeited**.

- **Personal Bond Forfeiture:** In the case of a personal bond, the accused would be liable to pay the specified amount they had agreed to for their release.
- **Surety Bond Forfeiture:** In the case of a surety bond, the surety (the third party) would be required to pay the bond amount if the accused fails to comply with the bail conditions.

Upon forfeiture, the court may also order the immediate **arrest** of the accused.

Release on Bond under BNSS

Under BNSS, the procedure for release on a bond is streamlined to ensure efficiency and fairness. Some important aspects include:

- **Simplification of Bail Procedures:** BNSS aims to reduce procedural delays in releasing individuals on bail or bond, especially in minor offenses.
- **Recognizing the Right to Liberty:** By providing for personal bonds, BNSS emphasizes the importance of personal liberty and avoids unnecessary detention, especially for those who cannot afford financial sureties.
- **Conditional Release:** Courts have the power to set specific conditions based on the nature of the offense and the circumstances of the accused to ensure that the accused does not flee or interfere with the trial process.

Importance of Bonds in Criminal Justice

Bonds under the BNSS play a critical role in ensuring:

- **Balance between Liberty and Public Safety:** Bonds provide a means to release the accused from custody while ensuring they do not evade the legal process.
- **Preventing Overcrowding in Jails:** By allowing for personal and surety bonds, BNSS prevents unnecessary detention of individuals, reducing overcrowding in jails.
- **Fairness in Legal Proceedings:** Bonds ensure that even accused individuals with limited financial resources can be released pending trial, maintaining fairness and equality in the judicial process.

Conclusion

Bonds under BNSS are a vital legal mechanism that balance the accused's right to liberty with the interests of justice. By providing options such as personal bonds (which don't require financial surety) and surety bonds (which involve a third party guarantee), BNSS ensures that individuals are not unnecessarily detained, while also providing legal safeguards to ensure their compliance with court proceedings

AUDIO VIDEO ELECTRONIC MEANS IN BNSS

Audio-Video Electronic Means in Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023

The **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023**, a modernized code replacing the Criminal Procedure Code (CrPC) of 1973, introduces significant reforms to streamline the criminal justice process and incorporate advancements in technology. One of the notable features of BNSS is the **use of audio-video electronic means** in various stages of criminal proceedings.

The inclusion of electronic means serves several purposes:

- To enhance the **efficiency of legal proceedings**.
- To improve **transparency** and ensure that justice is both accessible and timely.
- To accommodate the modern technological advancements and reduce delays.

1. Use of Audio-Video Electronic Means in Criminal Proceedings

Under BNSS 2023, **audio-video electronic means** refer to the use of video conferencing, electronic records, and digital media in various stages of criminal investigations, trials, and post-trial procedures. This includes virtual hearings, electronic recording of evidence, and digital submission of documents, among other uses.

Key Provisions for Audio-Video Use:

- **Virtual Court Proceedings:** BNSS allows for court hearings to be conducted using video conferencing, particularly in situations where physical presence may not be possible or practical. This is especially useful in situations such as:
 - **Remand hearings** for accused persons.
 - **Bail hearings** and other interim proceedings.
 - **Examination of witnesses** who cannot be physically present in court.
- **Electronic Recording of Evidence:** Witnesses can testify via video link, and their depositions can be electronically recorded. This helps:
 - Speed up the process by allowing remote testimonies.
 - Safeguard the rights of witnesses who may be vulnerable or at risk if they appear in person.

- **Examination of Prisoners through Video Conferencing:** Under BNSS, prisoners can be produced in court virtually through video conferencing rather than being physically transported from jails to courtrooms, which:
 - Reduces the burden on law enforcement agencies.
 - Saves time and resources.
 - Enhances the safety of both the accused and the public.
- **Virtual Examination of Foreign or Outstation Witnesses:** BNSS allows the recording of statements or evidence from witnesses located in other countries or far-off locations through electronic means, eliminating the need for their physical presence in court.

2. Filing of Documents and Digital Evidence

BNSS facilitates the **electronic submission** of legal documents, evidence, and applications to streamline legal processes. It promotes:

- **E-filing** of police reports, charge sheets, and other essential documents.
- **Digital recording of confessions and statements** of witnesses, ensuring they are preserved in a tamper-proof format.

This move reduces delays caused by manual filing systems and increases the **reliability and security** of legal documents and evidence.

3. Video Recording of Confessions and Statements

BNSS mandates the **video recording of certain procedures**, such as confessions and statements made before the magistrate under Sections 161 and 164 of the CrPC (now incorporated in BNSS). This ensures:

- **Transparency:** The process is recorded in real-time, reducing the likelihood of coercion or manipulation of confessions.
- **Safeguarding Rights:** Video recording ensures that the accused's rights are respected, and the evidence is captured accurately.

Such recordings provide stronger **evidentiary value** in courts, as they offer an unalterable record of what transpired during interrogation or confession.

4. Protection of Vulnerable Witnesses

BNSS recognizes the need to protect vulnerable witnesses, such as **victims of sexual offenses, children, and persons with disabilities**, by allowing them to testify via video conferencing or other electronic means. This provision:

- **Minimizes trauma:** Allowing the witness to testify remotely prevents re-victimization or intimidation by the accused.
- **Encourages truthful testimony:** By creating a safer environment, witnesses can testify without fear of reprisal.

5. Remote Investigation and Digital Submission of Charge sheets

BNSS also allows **remote submission of chargesheets, police reports, and investigation reports** via electronic means, which helps law enforcement agencies:

- Expedite the investigative process.
- Streamline interactions between investigative agencies and the judiciary.

This provision aids in handling **large volumes of digital evidence** such as emails, financial records, and surveillance footage, which can be easily shared electronically.

6. Technology in Forensic and Digital Evidence

Incorporating electronic means in BNSS extends to the collection and use of **digital and forensic evidence**. The law provides for:

- **Electronic preservation of forensic evidence**, such as DNA samples, fingerprints, and digital footprints.
- **Digital documentation** of crime scenes using video recording or 3D mapping technologies.

This integration improves the quality of evidence presented in court and helps maintain its **integrity**.

7. Safeguards and Limitations

While BNSS encourages the use of audio-video electronic means, it also establishes safeguards to ensure that:

- The **right to a fair trial** is maintained.
- All **evidence is authenticated** to prevent tampering or misuse.
- Video conferencing facilities are used only when it is **in the interest of justice** and does not prejudice any party involved.

The court has the discretion to determine when the use of electronic means is appropriate, ensuring that the rights of the accused and other stakeholders are fully protected.

8. Enhancing Access to Justice

By incorporating audio-video electronic means, BNSS promotes **access to justice** for all citizens, particularly:

- **Rural and remote areas** where physical access to courts may be limited.
- **Persons with disabilities** or individuals who are unable to attend court due to health issues.

This modernization of the criminal procedure law ensures that justice is accessible, efficient, and in line with **21st-century technological advancements**.

Conclusion

The use of **audio-video electronic means** in the **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023** marks a significant step toward modernizing India's criminal justice system. It ensures faster trials, reduces delays, and brings efficiency while protecting the rights of all parties involved. By incorporating these digital tools, BNSS aims to make the judicial system more responsive to the needs of both the public and the law enforcement agencies.

VICTIM UNDER BNSS

Victim under the Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023

The **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023**, which replaces the Criminal Procedure Code (CrPC) of 1973, significantly enhances the rights and protections afforded to **victims** of crime. In the context of BNSS, a **victim** is recognized as a person who has suffered harm, injury, or loss as a result of a crime. This harm could be **physical, emotional, mental, or financial**, and the law seeks to ensure that victims are provided adequate rights, protection, and remedies.

Definition of Victim under BNSS

A **victim** under the BNSS 2023 includes:

- A person who has suffered **physical or mental injury** or suffered a loss due to an offense.
- The term also extends to include the **legal heirs** or representatives of the victim in case the victim is deceased or incapable of representing themselves.

Key Rights and Provisions for Victims under BNSS 2023

BNSS 2023 strengthens the **legal rights of victims** by granting them more involvement in the criminal justice process, ensuring their safety, and providing mechanisms for compensation and rehabilitation. Some of the **salient rights and provisions** for victims under BNSS include:

1. Right to Participation in Criminal Proceedings

Under BNSS, victims are given a more **active role** in the criminal justice process. Victims are now allowed to:

- **Participate in Court Proceedings:** Victims have the right to **attend and participate** in court proceedings related to the crime committed against them. This includes **appeals** and other post-trial hearings.

- **Right to be Heard:** Victims have the right to present their perspective before the court during important stages of the trial, such as **bail hearings, plea bargains, and sentencing**. Their views must be considered by the court when making decisions.
- **Assistance in Prosecution:** BNSS grants the victim the right to **engage an advocate** of their choice to assist the prosecution, especially in serious cases, enhancing their access to legal support.

2. Right to Information

BNSS 2023 emphasizes the **victim's right to information** throughout the legal process. Victims are entitled to:

- **Information about Legal Proceedings:** The police, prosecution, and courts are required to keep the victim informed of all stages of the case, including arrest, bail, trial dates, and the final outcome.
- **Information about Rights:** Victims must be made aware of their rights to compensation, protection, and assistance throughout the trial process.

This provision ensures transparency and empowers victims to stay engaged in the legal process.

3. Right to Protection

BNSS recognizes that victims, especially those of serious crimes (such as sexual offenses, domestic violence, or crimes involving organized crime), may face threats, intimidation, or coercion. As a result, the law provides for various **protective measures**:

- **Witness Protection Schemes:** Victims and witnesses who face threats or danger can be protected under **witness protection programs**. This could involve relocation, anonymity, or other protective measures.
- **Restraining Orders:** Courts may issue **restraining orders** preventing the accused from contacting or approaching the victim during the course of the trial to ensure the victim's safety.

4. Right to Compensation

One of the notable features of BNSS 2023 is the **expanded scope of compensation** for victims. The law recognizes that victims often suffer not just physically but also financially and emotionally. BNSS provides mechanisms for compensating victims in the following ways:

- **Victim Compensation Scheme:** BNSS mandates that states implement **victim compensation schemes** to provide financial compensation to victims who have suffered loss or injury as a result of a crime. This compensation is intended to cover:
 - Medical expenses,
 - Loss of livelihood,
 - Rehabilitation costs, and
 - Emotional and mental trauma recovery.
- **Compensation from Accused:** In cases where the accused is convicted, the court can order the convicted person to pay compensation to the victim for the harm suffered.

- **Interim Compensation:** Victims can also be awarded **interim compensation** during the trial, especially if they require immediate financial assistance.

5. Right to Rehabilitation

BNSS ensures that victims are not only compensated but also provided with access to **rehabilitation services**. This is particularly important for victims of serious offenses such as sexual violence, human trafficking, and terrorism. The rehabilitation services under BNSS include:

- **Counseling and Mental Health Services:** Victims are entitled to **counseling services**, psychological support, and therapy to help them cope with the trauma they have experienced.
- **Medical Assistance:** Victims are provided with access to free medical treatment if they suffer injuries as a result of the crime.
- **Social Support Services:** BNSS provides that victims should have access to social services that assist in reintegrating them into society, ensuring that their dignity and well-being are restored.

6. Special Provisions for Vulnerable Victims

BNSS includes **special provisions** for vulnerable victims, such as:

- **Victims of Sexual Offenses:** Special protections are afforded to victims of sexual offenses, ensuring their dignity and privacy throughout the trial process. Courts are required to conduct proceedings in a way that minimizes trauma, including in-camera trials (closed trials) for sexual offense cases.
- **Children and Disabled Victims:** Victims who are children or individuals with disabilities are given additional protection. Their testimony can be recorded through **video conferencing** or other electronic means, and special care is taken to ensure that the trial does not cause them further distress.

7. Right to Appeal

Under BNSS, victims are given the **right to appeal** in certain cases. If the victim is dissatisfied with the outcome of the trial, such as the **acquittal of the accused** or the **leniency of the sentence**, they are entitled to file an appeal in higher courts. This provision:

- Empowers victims to seek justice if they feel the trial court has erred in its judgment.
- Ensures that the victim's perspective continues to be considered throughout the judicial process.

8. Victim Impact Statement

BNSS recognizes the importance of understanding the **impact** that a crime has had on the victim. To this end, it allows for the submission of a **victim impact statement** during the sentencing stage. This statement:

- Allows the victim to express how the crime has affected their life (emotionally, financially, and physically).
- Enables the court to consider the victim's suffering when determining an appropriate sentence for the convicted person.

Conclusion

The **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023** marks a significant shift toward a **victim-centric approach** in India's criminal justice system. By granting victims enhanced rights to participate in the trial, seek protection, access compensation, and secure rehabilitation, BNSS aims to provide a more **just and equitable system**. The recognition of victims' rights in a more comprehensive manner ensures that the criminal justice process not only punishes offenders but also focuses on the **healing and recovery** of victims.

INVESTIGATION UNDER BNSS

Investigation under Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023

The **Bharatiya Nagarika Suraksha Sanhita (BNSS) 2023**, which replaces the Criminal Procedure Code (CrPC) of 1973, outlines the procedure for the investigation of offenses to ensure the **efficient, transparent, and fair administration of criminal justice**. The investigative process under BNSS has been modernized with the inclusion of technological advancements and strengthened safeguards to protect the rights of both the accused and the victim.

1. Meaning and Purpose of Investigation

Investigation under BNSS refers to the systematic process undertaken by the police or other authorized investigating agencies to:

- Collect evidence,
- Ascertain the facts and circumstances of a crime,
- Identify and apprehend the offenders, and
- Form the basis for prosecution in a court of law.

The primary objective of the investigation is to gather **credible and admissible evidence** to support the charge against the accused and to ensure that justice is served.

2. Stages of Investigation under BNSS

The process of investigation under BNSS typically includes the following stages:

a) Information to Police and Registration of FIR (First Information Report)

- **First Information Report (FIR):** The process of investigation begins when an FIR is registered. Any person can provide information about the commission of a cognizable offense to the police, and the police are required to register an FIR under **Section 154 of BNSS**.

- **Non-cognizable Offenses:** For non-cognizable offenses, the police can only investigate after obtaining permission from the court.

The registration of the FIR sets the investigation in motion, and the police take up the task of investigating the matter.

b) Proceeding to the Scene of Crime

- Once the FIR is registered, the police or investigating officer proceeds to the scene of the crime. Under BNSS, they are empowered to take steps to **protect and preserve evidence** at the scene of the offense.
- They must also **record observations**, take photographs, and gather physical and forensic evidence from the crime scene.

c) Examination of Witnesses and Recording of Statements

- The investigating officer may **examine witnesses** and record their statements. Under **Section 161 of BNSS**, these statements are crucial for forming the case.
- Statements made by witnesses must be accurate, and BNSS emphasizes the importance of **transparency** by encouraging the **audio-visual recording** of statements in serious offenses, adding credibility to the evidence.

d) Arrest of Accused

- If the investigation reveals sufficient **prima facie evidence** against the accused, the police can arrest the individual. BNSS regulates arrests to ensure that they are conducted fairly and only when necessary, particularly when the accused is likely to abscond or tamper with evidence.
- The rights of the accused during arrest, such as the right to be informed of the grounds of arrest and the right to legal representation, are also protected under BNSS.

e) Search and Seizure

- BNSS authorizes investigating officers to conduct **searches** of persons, premises, or vehicles if they believe that important evidence related to the crime may be found. The police can also **seize** any incriminating material during the investigation.
- Proper documentation and adherence to legal procedures during search and seizure are mandated under BNSS to prevent any violation of rights.

f) Collection of Evidence

- Evidence collected during the investigation can include:
 - **Oral evidence** from witnesses and victims,
 - **Documentary evidence**, including digital records and communications,
 - **Physical evidence** like weapons, forensic samples, and other items recovered from the crime scene.

BNSS emphasizes the use of **scientific methods** and **forensic tools** in the collection and preservation of evidence to ensure its reliability and admissibility in court.

g) Filing of Chargesheet

- Once the investigation is complete and sufficient evidence is gathered, the investigating officer prepares and submits a **chargesheet** under **Section 173 of BNSS**. The chargesheet outlines the findings of the investigation, the evidence collected, and the charges against the accused.
- In the case of insufficient evidence, a **closure report** is filed, and the case may not proceed to trial unless further evidence emerges.

h) Further Investigation

- If new evidence or information comes to light, BNSS allows the investigating agency to conduct **further investigation** even after the chargesheet has been filed. This ensures that the investigation remains dynamic and responsive to any new developments.

3. Technological Advancements in Investigation under BNSS

BNSS introduces several **technological innovations** to modernize the investigative process and make it more efficient, transparent, and less prone to errors or manipulations. Key advancements include:

a) Audio-Video Recording

- BNSS mandates the **audio-video recording** of certain procedures, such as the interrogation of accused persons, statements of witnesses, and confessions. This helps to ensure transparency and reduces the possibility of coercion, thereby protecting the rights of the accused and witnesses.

b) Digital Filing and Documentation

- Investigating agencies can now **file chargesheets, police reports, and other legal documents electronically**. This reduces paperwork, speeds up the process, and enhances the security and authenticity of these documents.

c) Use of Forensic and Digital Evidence

- BNSS promotes the increased use of **forensic science** in criminal investigations. It encourages the collection of DNA samples, fingerprints, and other forensic evidence to build a more scientifically sound case.
- **Digital evidence** such as emails, phone records, and surveillance footage can be used to strengthen the case. Proper procedures for the collection, preservation, and presentation of digital evidence are outlined to ensure that it is admissible in court.

4. Role of Magistrates in Investigation

BNSS emphasizes the **role of magistrates** in supervising certain aspects of the investigation to prevent abuse of power and ensure the fairness of the process. Key functions of the magistrate include:

- **Monitoring Arrests:** When the police arrest a person, they must present the arrested person before the magistrate within **24 hours**, as per **Section 57 of BNSS**. The magistrate reviews the grounds for arrest and determines whether continued custody is necessary.
- **Approval of Searches and Seizures:** In certain cases, the police need prior approval from the magistrate to conduct searches or seize property.
- **Recording Confessions:** Confessions made by the accused must be recorded before a magistrate to ensure that they are made voluntarily and without coercion, as per **Section 164 of BNSS**.

5. Safeguards for Accused and Victims during Investigation

BNSS includes several **safeguards** to protect the rights of both the accused and the victims during the investigation process:

a) Rights of the Accused

- **Right to Legal Representation:** The accused has the right to consult with an attorney, and if they cannot afford one, the state is required to provide legal aid.
- **Protection against Torture:** BNSS ensures that no person in police custody is subjected to torture or inhumane treatment during interrogation or detention.
- **Right to Bail:** In certain cases, the accused has the right to apply for **bail** during the investigation phase, especially in bailable offenses.

b) Rights of Victims

- **Participation in Investigation:** Victims have the right to be informed about the progress of the investigation, and they can assist in providing evidence.
- **Right to Protection:** Victims, especially those who are vulnerable, can request protection from the authorities if they fear for their safety during the investigation.
- **Right to Compensation:** In cases where victims suffer financial or physical harm due to the crime, they are entitled to compensation under the **Victim Compensation Scheme**.

6. Challenges and Limitations

While BNSS has introduced significant reforms, there are certain challenges that may arise during the investigative process:

- **Implementation of Technology:** The widespread use of audio-video recordings, forensic methods, and digital evidence requires proper infrastructure, training, and resources, which may be lacking in some areas.
- **Delay in Investigations:** Despite the reforms, investigations may still face delays due to backlog, understaffing, or inadequate resources in police departments.

Conclusion

The **investigation process under BNSS 2023** is designed to be more transparent, efficient, and aligned with modern technological advancements. By focusing on the **collection of reliable evidence**, ensuring the **rights of the accused and victims**, and providing

technological tools to support the investigative process, BNSS seeks to strengthen the **criminal justice system** in India. The overarching goal is to ensure a fair and swift process that balances the rights of individuals with the need to uphold law and order

Organisation functions and powers Criminal Courts under Bharatiya Nagarika Suraksha Sanhita

Introduction

The **Bharatiya Nagarika Suraksha Sanhita (BNSS), 2023** is a comprehensive legislation aimed at overhauling the existing **Criminal Procedure Code (CrPC) of 1973**, with the goal of modernizing and improving the criminal justice system in India. It is part of a larger effort to bring reforms to India's legal framework, focusing on improving efficiency, transparency, and safeguarding the rights of both victims and the accused.

The BNSS outlines detailed procedures for the investigation, prosecution, and trial of criminal cases while ensuring that fundamental principles of justice, such as the right to a fair trial and legal representation, are maintained. The Act introduces several new provisions to ensure faster case resolution, increased use of technology, victim support, and protection mechanisms. One important aspect of the BNSS is the clear categorization and constitution of criminal courts, which is essential for the effective administration of criminal justice.

Classes and Constitution of Criminal Courts under Bharatiya Nagarika Suraksha Sanhita

The **BNSS, 2023**, like the CrPC, retains the hierarchical structure of criminal courts, ensuring the clear delegation of judicial powers at different levels. This structure allows for an organized and systematic approach to handling criminal cases. Below is an outline of the classes and constitution of criminal courts under the BNSS:

Supreme Court of India

- **Position in Hierarchy:** The highest court in India.
- **Role:** The Supreme Court has jurisdiction over all lower courts in matters of constitutional law, appeals from High Courts, and certain cases of public importance. It serves as the final appellate authority in both civil and criminal matters.
- **Constitution:** The Supreme Court consists of the Chief Justice of India and other judges appointed by the President of India, as prescribed by the Constitution.

High Courts

- **Position in Hierarchy:** Below the Supreme Court, each state or union territory has a High Court.
- **Role:** High Courts have both original jurisdiction (in certain cases) and appellate jurisdiction over subordinate courts within their jurisdiction. They also oversee the functioning of lower courts and may revise or review judgments passed by them.

- **Constitution:** High Courts consist of the Chief Justice and other judges, appointed by the President in consultation with the Chief Justice of India and the Governor of the respective state.

There are four classes of courts other than the High Court and the Special Courts in every State. According to BNSS, the four classes of Courts are as follows:

- **Session Court**
- **Judicial Magistrate of the first class**
- **Judicial Magistrate of the second class; and**
- **Executive Magistrate**

In BNSS, the concept of metropolitan magistrate and metropolitan area is removed. In the Code, the metropolitan magistrate is provided with the powers same as of the Judicial magistrate of first class. But according to BNSS, there will be no metropolitan magistrates and metropolitan areas.

Constitution of Session Court

According to Section 8 of BNSS, the Session Court shall only consist of the Session Judge, who is the presiding officer of the court and the Assistant Session Judges. The High Court of the particular State shall appoint the presiding officer and may also appoint Additional Session Judges.

Also, the Session Judge may also pass an order for the distribution of the duties to all the nominated additional session judges.

Constitution of Court of Judicial Magistrates

According to Section 11 of the Code and the Section 9 of BNSS, the Court of Judicial Magistrate shall include Court of Judicial Magistrate first class and Court of Judicial Magistrate second class.

Also, the State Government may after consultation with the High Court may establish any special court of judicial magistrate of first class or of second class. The presiding officer of these court shall also be appointed by the High Court.

According to Section 12 of the Code and Section 10 of BNSS, every Judicial Magistrate of first class shall be appointed as the Chief Judicial Magistrate or Additional Chief Judicial Magistrate or the Sub-divisional Magistrate by the High Court.

Also, every Chief Judicial Magistrate shall be subordinate to the Session Judge and every Judicial Magistrate shall be subordinate to the Chief Judicial Magistrate.

Executive Magistrates

- **Position in Hierarchy:** Separate from judicial magistrates, these magistrates perform administrative and executive functions in criminal matters.
- **Role:** Executive Magistrates are responsible for maintaining public order and peace, and they have the authority to impose preventive measures (such as binding individuals to keep peace or good behavior). They handle non-judicial functions such as issuing orders under preventive sections like Section 144 (prohibiting unlawful assembly).
- **Constitution:** Executive Magistrates, including District Magistrates and Sub-Divisional Magistrates, are appointed by the state government. They are typically government officers with administrative powers rather than judicial officers.

Special Courts

- **Position in Hierarchy:** These courts may be set up as necessary to handle specific types of cases.
- **Role:** Special Courts are created to handle cases of particular categories, such as corruption, narcotics, and offenses against women and children (such as POSCO cases). They ensure that cases requiring specialized legal and judicial expertise are resolved efficiently.
- **Constitution:** Special Courts are established by either the central or state government under specific statutes, with judges appointed based on their expertise in the area concerned.

Powers of Criminal Courts

According to Section 28 of the Code and Section 22 of BNSS, the **High Court** may pass any sentence authorised by the law. The **Session Judge** and the Additional Session Judge may pass any sentence authorised by the law but in case of sentence of death by any of such Judges, it has to be confirmed by the High Court of the particular State.

Section 29 of the Code and Section 23 of BNSS, the **Chief Judicial Magistrate** may pass any sentence except the death punishment, life imprisonment or the imprisonment for the term exceeding seven years.

The **Judicial Magistrate of first class** may pass a sentence for a term not exceeding three years and/or the fine not exceeding fifty thousand rupees. According to the Code, the maximum fine imposed by the Magistrate of first class is ten thousand rupees, but it is increased to fifty thousand rupees in BNSS.

Also, the **Judicial Magistrate of second class** may pass a sentence for the term not exceeding one year and/or for the fine not exceeding ten thousand rupees. According to the Code, the maximum imposed by the Magistrate of Second class is five thousand rupees, but it is increased to ten thousand rupees in BNSS.

According to Section 30 of the Code and Section 24 of BNSS, the **court of Judicial Magistrate** may pass sentence for imprisonment in default of fine but not in excess of the powers given under the Code and BNSS respectively. Also, the punishment passed in default of fine can be in addition to the punishment passed under 23 of BNSS.

Also, Section 25 of BNSS deals with the cases of conviction for the several offences. The said Section states that the court may pass different sentences in a single trial for different offences committed by the same person subject to section 9 of the Bhartiya Nyaya Sanhita, 2023. And the Court shall clarify that the sentences shall run concurrently or Consecutively. But here it should also be noticed that no court shall send the offender for trial before the higher Court only for the reason the aggregate of the several punishments is exceeding the punishment which it is competent to inflict on conviction of the single offence.

But the conditions are that no person shall be punished for more than fourteen years and the total aggregate of the punishments of the total offences shall not exceed twice the amount of the punishment which the court is competent to inflict for the single offence.

Conclusion

The **Bharatiya Nagarika Suraksha Sanhita (BNSS), 2023** retains the established criminal court hierarchy while incorporating modern reforms to enhance the efficiency of the judiciary. Courts are classified and structured based on the severity of offenses they handle, ensuring that justice is administered fairly and expediently. By refining the duties, powers, and functioning of these courts, the BNSS aims to make the criminal justice system more transparent, technologically advanced, and accessible, while preserving the rights of citizens in line with constitutional principles.

Sections 18, 19, and 20 of the Bharatiya Nagarik Suraksha Sanhita (BNSS) deal with public prosecutors, assistant public prosecutors, and the Directorate of Prosecution:

- **Section 18:** Covers public prosecutors, including their role in conducting cases in a district or local area
- **Section 19:** Covers assistant public prosecutors
- **Section 20:** Covers the Directorate of Prosecution, including the roles of Deputy Directors and Assistant Directors of Prosecution

According to Section 18 of the BNSS, for every High Court, the Central Government or the State Government shall, after consultation with the High Court, appoint a Public Prosecutor and may also appoint one or more Additional Public Prosecutors, for conducting in such Court, any prosecution, appeal or other proceeding on behalf of the Central Government or the State Government, as the case may be:

Section 19 ,Appointment of Assistant Public Prosecutors

(1) The State Government shall appoint in every district one or more Assistant Public Prosecutors for conducting prosecutions in the Courts of Magistrates.

(2) The Central Government may appoint one or more Assistant Public Prosecutors for the purpose of conducting any case or class of cases in the Courts of Magistrates.

Provided that no police officer shall be eligible to be appointed as an Assistant Public Prosecutor, if he -

- (a) has taken any part in the investigation into the offence with respect to which the accused is being prosecuted; or
- (b) is below the rank of Inspector.

The Central Government may appoint one or more Public Prosecutors for the purpose of conducting any case in any district or local area.

For every district, the State Government shall appoint a Public Prosecutor and may also appoint one or more Additional Public Prosecutors for the district: Provided that the Public Prosecutor or Additional Public Prosecutor appointed for one district may be appointed also to be a Public Prosecutor or an Additional Public Prosecutor, as the case may be, for another district.

The District Magistrate shall, in consultation with the Sessions Judge, prepare a panel of names of persons, who are, in his opinion fit to be appointed as Public Prosecutors or Additional Public Prosecutors for the district.

No person shall be appointed by the State Government as the Public Prosecutor or Additional Public Prosecutor for the district unless his name appears in the panel of names prepared by the District Magistrate

A prosecutor's role in the criminal justice system is to represent the state in a criminal case, and to ensure that justice is delivered fairly and impartially

The role of the Public Prosecutor begins once the police has conducted the investigation and files the charge sheet in the Court. He represents the interests of the State and conducts the prosecution on behalf of the State. The Public Prosecutor is not involved in the investigation that is conducted by the police.

A prosecutor defends the state's interests, not the police, and ensures that the prosecution is conducted fairly.

The objective of any criminal trial is to investigate the crime and decide the accused's guilt or innocence, and it is the prosecutor's primary responsibility to assist the court in determining the truth of the case. As a result, the prosecutor is required to carry out his duties in a fair, fearless, and responsible manner.

However, these expectations must be balanced against the realities of the criminal justice system. The prosecutor must play an independent role at every step of the criminal proceeding to obtain the desired results.

Section 20 outlines the establishment and structure of the Directorate of Prosecution in the state. It details the roles and eligibility criteria for the Director, Deputy Directors, and

Assistant Directors of Prosecution, and their respective powers and functions in overseeing prosecution cases.

The State Government may establish—

- a Directorate of Prosecution in the State consisting of a Director of Prosecution and as many Deputy Directors of Prosecution as it thinks fit; and
- a District Directorate of Prosecution in every district consisting of as many Deputy Directors and Assistant Directors of Prosecution as it thinks fit.

A person shall be eligible to be appointed—

- as a Director of Prosecution or a Deputy Director of Prosecution, if he has been in practice as an advocate for not less than fifteen years or is or has been a Sessions Judge;
- as an Assistant Director of Prosecution, if he has been in practice as an advocate for not less than seven years or has been a Magistrate of the first class.

The Directorate of Prosecution shall be headed by the Director of Prosecution, who shall function under the administrative control of the Home Department in the State.

Every Deputy Director of Prosecution or Assistant Director of Prosecution shall be subordinate to the Director of Prosecution; and every Assistant Director of Prosecution shall be subordinate to the Deputy Director of Prosecution.

Every Public Prosecutor, Additional Public Prosecutor, and Special Public Prosecutor appointed by the State Government under sub-section (1) or sub-section (8) of section 18 to conduct cases in the High Court shall be subordinate to the Director of Prosecution.

Every Public Prosecutor, Additional Public Prosecutor, and Special Public Prosecutor appointed by the State Government under sub-section (3) or sub-section (8) of section 18 to conduct cases in District Courts and every Assistant Public Prosecutor appointed under sub-section (1) of section 19 shall be subordinate to the Deputy Director of Prosecution or the Assistant Director of Prosecution.

The powers and functions of the Director of Prosecution shall be to monitor cases in which offences are punishable for ten years or more, or with life imprisonment, or with death; to expedite the proceedings and to give opinion on filing of appeals.

The powers and functions of the Deputy Director of Prosecution shall be to examine and scrutinise police reports and monitor the cases in which offences are punishable for seven years or more, but less than ten years, for ensuring their expeditious disposal.

The functions of the Assistant Director of Prosecution shall be to monitor cases in which offences are punishable for less than seven years.

- **Director of Prosecution:** Appointed with a minimum of 15 years of practice or a previous role as a Sessions Judge.
- **Deputy Director of Prosecution:** Appointed to oversee cases with offenses punishable for seven to ten years.

- **Assistant Director of Prosecution:** Monitors cases with offenses punishable for less than seven years.

Police under BNSS.

Powers and duties of police under bharatiya nagarika suraksha sanhita

The **Bharatiya Nagarika Suraksha Sanhita (BNSS)** is the proposed new criminal law code in India that aims to replace the current **Criminal Procedure Code (CrPC)**. The BNSS introduces changes in the powers and duties of the police to streamline the process of investigation, arrests, and ensure citizen security. Below are some key powers and duties of the police under the BNSS:

1. Powers of Arrest

- **Warrantless Arrests:** Police officers can arrest a person without a warrant if they are suspected of committing a cognizable offense, which includes serious crimes.
- **Rights of the Arrested Person:** The police must inform the arrested person of their rights, including the right to legal counsel and the right to be informed about the charges against them.
- **Arrest Documentation:** The police must document arrests with full transparency, ensuring accountability.

2. Investigation

- **Time-bound Investigation:** The BNSS mandates that investigations be completed within a specific time frame, especially for crimes involving serious offenses.
- **Electronic Evidence:** The police have expanded powers to collect and use electronic evidence, including digital records, to aid in their investigations.
- **Forensic Evidence:** Greater emphasis is placed on the use of forensic evidence in investigations to ensure accuracy and scientific verification of facts.

3. Search and Seizure

- **Search with or without a Warrant:** The police have the power to conduct searches of property or persons with a warrant, and in certain cases, without a warrant if they believe evidence is at risk of being destroyed.
- **Seizure of Property:** The police can seize any property that is believed to be involved in a crime or has been used to commit a crime.

4. Summons and Notices

- **Issuing Summons:** Police officers can issue summonses to individuals for questioning, requiring their presence at a police station or other location.
- **Appearance and Cooperation:** Citizens are required to comply with these summonses and provide information to assist in investigations.

5. Maintenance of Public Order

- **Crowd Control:** The police are responsible for maintaining public order, managing protests, and ensuring that large gatherings do not escalate into violence.
- **Preventive Arrests:** In certain circumstances, the police may carry out preventive arrests to avoid potential law and order situations.

6. Duty to Report

- **First Information Report (FIR):** Police officers must register an FIR upon receiving information about a cognizable offense from any individual.
- **Daily Logs and Documentation:** The police must maintain accurate logs of all complaints, arrests, searches, seizures, and other law enforcement actions.

7. Use of Force

- **Proportional Use of Force:** Police can use force, but it must be proportional to the situation. Excessive use of force or misuse of power is strictly prohibited under the BNSS.
- **Guidelines on Firearms:** Specific guidelines are laid out regarding when firearms can be used, focusing on self-defense or to prevent serious offenses.

8. Victim and Witness Protection

- **Ensuring Safety:** The police have a duty to protect victims and witnesses from intimidation or harm, especially in cases involving serious crimes.

9. Bail Provisions

- **Non-cognizable Offenses:** For non-cognizable offenses, where police cannot arrest without a warrant, the police are required to follow due procedure for bail.
- **Bailable and Non-bailable Offenses:** The police have to ensure that suspects in bailable offenses are provided bail promptly, while for non-bailable offenses, they follow the court's directions.

10. Transparency and Accountability

- **Body Cameras and Technology:** The police are encouraged to use body cameras and other technology during searches, arrests, and interrogations to ensure accountability.
- **Internal Oversight Mechanisms:** The BNSS proposes stronger internal oversight mechanisms within the police force to prevent corruption and abuse of power.

The BNSS aims to modernize police procedures, increase accountability, and uphold the rights of citizens while maintaining law and order effectively. It introduces several reforms to make the criminal justice system more efficient and transparent.

FIR

Under the **Bharatiya Nagarika Suraksha Sanhita (BNSS)**, an **FIR (First Information Report)** remains a crucial document in the criminal justice process. It refers to the formal record of the information given to the police regarding the commission of a cognizable offense, which enables the police to begin an investigation.

Key Aspects of FIR under BNSS:

1. **Mandatory Registration of FIR for Cognizable Offenses:**
 - Police officers are required to mandatorily register an FIR if the information they receive pertains to a cognizable offense (serious offenses where police can arrest without a warrant, such as murder, rape, theft).
 - If a cognizable offense is reported, the police cannot refuse to file an FIR.
2. **Mode of Filing an FIR:**
 - **Written or Oral:** A complainant can file an FIR either by submitting a written complaint or by giving information orally, which the police will record in writing.
 - **Digital FIR:** BNSS also encourages the use of technology, making provisions for filing FIRs online in certain cases.
3. **Zero FIR:**
 - The concept of **Zero FIR**, which was introduced earlier, is retained and emphasized in BNSS. It allows a police station to file an FIR for a cognizable offense irrespective of jurisdiction. Later, the FIR can be transferred to the appropriate jurisdiction.
4. **Information to the Complainant:**
 - Once an FIR is registered, a copy of the FIR must be provided to the complainant free of cost. This ensures transparency and accountability in the process.
5. **Investigation Following FIR:**
 - After the FIR is filed, the police are legally obligated to investigate the case. The investigation may involve gathering evidence, conducting searches, making arrests, and questioning suspects.
6. **FIR in Non-cognizable Cases:**
 - For **non-cognizable offenses** (minor offenses where a warrant is needed for arrest), police are not required to file an FIR. Instead, a **general diary entry** is made, and the complainant is directed to approach the court for permission to investigate.
7. **False FIR and Penalties:**
 - The BNSS contains provisions to discourage the filing of false or frivolous FIRs. If a person is found to have willfully filed a false FIR, they may face penalties.
8. **Time-bound Process:**
 - The BNSS emphasizes that investigations following the registration of an FIR should be time-bound to avoid delays in justice. The law proposes strict timelines for completing investigations in certain types of offenses.
9. **Rights of the Accused:**
 - The person against whom the FIR is filed has the right to be informed about the allegations and charges, as well as their rights under the law, such as the right to legal counsel.

In summary, under the BNSS, the FIR serves as the first step in the formal criminal procedure for serious offenses, ensuring that the police are duty-bound to investigate such crimes without delay or prejudice. It emphasizes transparency, accountability, and quicker response times in registering and acting upon FIRs.

Investigation powers:

The Bharatiya Nagarik Suraksha Sanhita (BNSS) of 2023 grants several investigation powers, including:

- **Preliminary inquiries**

For offenses punishable by 3–7 years, the officer in charge can conduct a preliminary inquiry within 14 days with the Deputy Superintendent of Police's permission.

- **Cognizable cases**

Any police station officer can investigate a cognizable case within their jurisdiction without a Magistrate's order.

- **Forensic investigations**

For offenses punishable by 7 years or more, forensic experts must visit the crime scene to collect evidence.

- **Medical examinations**

Rape survivors must undergo a mandatory medical examination, including DNA analysis.

- **Electronic communication**

Information about a cognizable offense can be provided to the police electronically or orally, regardless of the offense's location.

- **Electronic trials**

All trials, inquiries, and proceedings can be held electronically.

- **Electronic evidence**

Electronic communication devices that may contain digital evidence can be used for investigation, inquiry, or trial.

- **Absence of accused**

If a proclaimed offender is absconding, the trial can be conducted and judgment pronounced in their absence.

- **Collection of samples**

Finger impressions, voice samples, and specimen signatures or handwriting can be collected for investigation or proceedings.

- **Attachment of property**

The court can attach the property of criminals that are deemed to be proceeds of crime.

Preliminary Inquiry

Preliminary Enquiry: Section 173(3) of BNSS has also given statutory recognition for conducting of preliminary enquiry of cases punishable with imprisonment of three years or more but less than seven years.

The Bharatiya Nagarik Suraksha Sanhita (BNSS) gives statutory authority to conduct a preliminary inquiry (PE) for certain offenses:

- **When to conduct a PE**

A PE can be conducted for offenses that are punishable by imprisonment for a minimum of three years and a maximum of seven years.

- **Who can conduct a PE**

The officer in charge can conduct a PE with the prior permission of the Deputy Superintendent of Police.

- **How long can a PE take**

The PE must be completed within 14 days.

- **What is the purpose of a PE**

The purpose of a PE is to determine if there is a prima facie case for proceeding with the investigation.

Here are some other things to know about the BNSS:

- The BNSS gives the police the power to decide if a cognizable offense has been committed.
- If the police don't file an FIR, the informant can file a private complaint with the magistrate.
- If the offense was committed outside of the local police station's jurisdiction, the destination police station should conduct the PE.
- The police headquarters can establish a mechanism to ensure that PE decisions are transparent and objective.

COMPLAINT

2(h) "complaint" means any allegation made orally or in writing to a Magistrate, with a view to his taking action under this Sanhita, that some person, whether known or unknown, has committed an offence, but does not include a police report.

Explanation.—A report made by a police officer in a case which discloses, after investigation, the commission of a non-cognizable offence shall be deemed to be a complaint; and the police officer by whom such report is made shall be deemed to be the complainant;

Section 223 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023, outlines the procedure for filing a private complaint and the examination of the complainant and witnesses:

- **Examination**

The magistrate must examine the complainant and any witnesses under oath. The complainant and witnesses must sign the written record of the examination.

- **Notice to accused**

The magistrate must issue a notice to the accused and give them an opportunity to be heard.

- **Exceptions**

The magistrate does not need to examine the complainant if the complaint is made by a public servant or a court.

- **Possible outcomes**

After the examination, the magistrate may:

- Issue a process to summon the accused
- Dismiss the complaint
- Postpone the issuance for further inquiry

Arrest-Concept

Under the **Bharatiya Nagarika Suraksha Sanhita (BNSS)**, **arrest** refers to the act of taking a person into custody by legal authority, typically for the purpose of charging them with a criminal offense or preventing them from committing an offense. The concept of arrest is central to the criminal justice process, and BNSS outlines specific provisions regarding how and when arrests can be made, as well as the rights of the arrested person.

Meaning of Arrest under BNSS

1. **Definition:**

- Arrest under BNSS means the act of detaining an individual by legal authority, either to prevent a crime, for the investigation of a crime, or to ensure the presence of the accused in court for trial.

2. **Types of Arrest:**

- **Arrest with a warrant:** Issued by a magistrate, generally for non-cognizable offenses or when there is no urgency in arresting the individual.
- **Arrest without a warrant:** This can be done by a police officer in cases of **cognizable offenses** (serious crimes like murder, robbery, rape) where the police have the power to arrest immediately without a warrant.

3. **Procedure for Arrest:**

- The arrest must be conducted in a lawful manner, ensuring that no individual's rights are violated unnecessarily.
- The arresting officer must clearly inform the individual of the **grounds of arrest**.
- The arrested person must be produced before a magistrate within **24 hours** of arrest, excluding travel time.

4. **Documents:**

- The police must maintain accurate records of arrests, which will be subject to scrutiny in court if needed. This includes **arrest warrants (if applicable)**, and details of the person arrested.

5. **Purpose of Arrest:**

- To prevent the commission of an offense.

- To secure the person for investigation or interrogation.
- To ensure the accused appears in court for trial.
- To prevent the accused from fleeing or tampering with evidence.

Consequences of Arrest under BNSS

1. Rights of the Arrested Person:

- **Right to be informed:** The arrested person must be informed about the reason for their arrest and the charges against them.
- **Right to legal counsel:** The arrested person has the right to consult and be defended by a lawyer of their choice.
- **Right to remain silent:** The person has the right to remain silent, and anything they say can be used as evidence against them.
- **Right to be produced before a magistrate:** Within 24 hours of arrest, the arrested person must be brought before a magistrate.
- **Right against self-incrimination:** The arrested person cannot be forced to testify or provide evidence against themselves.

2. Detention and Custody:

- After the arrest, the police may take the individual into **custody** for further interrogation or investigation.
- If the arrested person is not released on bail, they may be detained in **judicial custody** (jail) until trial proceedings begin.

3. Bail:

- **Bailable offenses:** For offenses categorized as bailable, the arrested person has the right to be released on bail, provided they can furnish sureties.
- **Non-bailable offenses:** For more serious crimes (non-bailable offenses), bail may only be granted by a court, and it is not an automatic right.

4. Criminal Proceedings:

- The arrest leads to the initiation of criminal proceedings, where the accused may be charged formally and tried in a court of law.
- If convicted, the arrested individual faces penalties such as imprisonment or fines, depending on the severity of the offense.

5. Impact on Personal Liberty:

- An arrest curtails the personal liberty of an individual, which is a serious consequence. The arrested person loses their freedom of movement, and their daily life is disrupted as they are detained and subjected to investigation.

6. Impact on Reputation:

- An arrest, even if it does not result in a conviction, can damage a person's reputation, leading to social stigma, professional setbacks, and personal hardships.

7. Remedies for Unlawful Arrest:

- **Illegal detention:** If the arrest is found to be unlawful, the arrested person may have the right to file for **habeas corpus** in court, demanding their release.
- **Compensation:** In cases of wrongful arrest or malicious prosecution, the individual may seek compensation for damages suffered.

8. Protection against Arbitrary Arrest:

- The BNSS includes safeguards to prevent arbitrary or unjust arrests. These include mandatory documentation of the grounds for arrest, judicial oversight, and strict timelines for investigation.

9. Preventive Arrests:

- The BNSS provides for **preventive arrests**, where a person can be arrested not for an offense already committed but to prevent them from committing a future offense. However, strict guidelines must be followed, and such arrests are subject to judicial scrutiny.

10. Judicial Review:

- The legality of an arrest, including whether it was justified or excessive, is subject to judicial review, meaning that a magistrate or higher court can examine the grounds of the arrest and order release if appropriate.

Conclusion

Under the BNSS, **arrest** is a significant legal action with serious consequences, impacting personal liberty, legal standing, and reputation. The law provides safeguards to ensure that arrests are made only when necessary and that the arrested individual's rights are protected throughout the legal process. Moreover, the BNSS emphasizes transparency, judicial oversight, and accountability to prevent abuse of power by law enforcement authorities.

NOTE : A separate material on arrest is attached to this chapter .Kindly go through the same